GENDER BIAS IN ARBITRATION DECISION-MAKING

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Abstract The current study examines how gender bias influences arbitration decisions and investigates two variables proposed to mitigate that effect: accountability and professional experience. 96 practicing arbitrators and 212 undergraduate students served as comparison samples, with half of each group randomly assigned to an accountability condition (accountable to others for decisions made, or not). Participants' gender attitudes were collected. Participants decided whether to uphold or overturn a termination decision in two mock arbitration cases in which grievant gender was experimentally varied. Results suggest grievant gender influences adjudication by altering the impressions formed of grievants. Students were more likely to decide against female grievants while arbitrators exhibited the opposite pattern. Subtler forms of sexist attitudes that favor women predicted the arbitrators' decisions in actual cases. The findings warrant future studies to examine how expertise might elicit certain forms of gender bias and how to attenuate the effect of subtle gender attitudes.

Introduction

- When employees file a grievance, labor and employment arbitrators decide whether to sustain, deny, or partially sustain the grievance
- Although adjudications should be derived from facts and voided of influence that stem from the grievant's personal characteristics, prior research exists on automaticity of implicit biases, including gender bias (Kang & Banaji, 2006)
- Literature review yields mixed findings as to whether grievant gender affects arbitration decisions, a reflection of different methods used (Bemmels, 1988; Scott & Shadoan, 1989)
- Expertise and accountability could potentially mitigate the effect of gender bias (Lerner & Tetlock, 1999; Shanteau & Dalgleish, 2010)
- Issue has imperative implications for arbitration process; any results that shed light on how to identify and attenuate biases would serve all involved parties
- Current study investigates conditions under which characteristics like gender affect decision-making, such as the attitudes of the decision-maker about gender roles

Hypotheses

Hypothesis: Grievant gender will affect arbitration decisions such that decision-makers will favor males

a) Arbitrators' professional experience will attenuate the use of gender, gender attitudes, and gender stereotypes in decisions, as compared to student sample

b) Participants assigned to the accountability conditions will decide more equally between grievant gender

Methodology

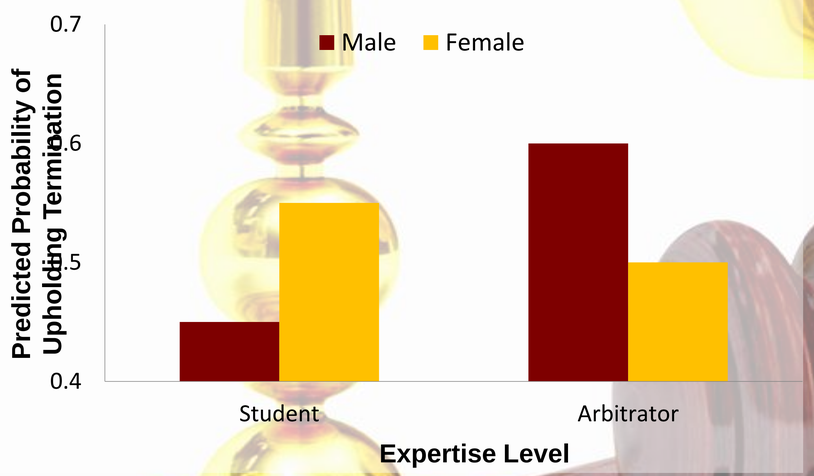
Participants
- 96 practicing arbitrators and 212 undergraduate students served as two sample groups that varied in arbitration experience

Materials
- Mock arbitration cases with fact patterns from real employment cases, in which the grievant-employee's sex was experimentally varied
- Labor arbitration decisions issued by arbitrators in actual cases

Procedure
- Part 1 measured participants' gender attitudes
- Part 2 randomly assigned half of each sample group to an accountability or no-accountability condition
- Participants read and issued a decision for two arbitration cases about an employee's termination
- Analysis of arbitrators' actual case decisions

Results

The Effect of Gender Grievant on Decision by Expertise Level



Discussion

- Results support that grievant gender plays a role in adjudication for decision-makers with professional experience as much as for those without
- Grievant gender affects arbitrator's impression formed of grievant based on arbitrator's gender-related attitudes
- Professional experience moderated the types of gender-related attitudes that influence arbitration decision-making
- Overt, hostile forms of sexism influenced students' decisions, whereas subtler forms of sexist attitudes (such as paternalism) influenced arbitrators' decisions
- Increased accountability did not moderate the effects of grievant gender on arbitration decisions

Future Directions

- Research should kindle efforts to identify and mitigate subtler forms of sexist attitudes
- Professional experience appears to attenuate effects of overt, hostile sexist attitudes, but whether it is due to overcorrection or lack of awareness that paternalism still constitutes gender bias remains unclear
- Methodology critique: supplementing experiment with actual decisions addressed caveats of prior research

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